Agreement

Windows Hawaii
A DIVISION OF NORTHWEST EXTERIORS

General Cont. Lic # C30910

Name: Tracy Hamasaki
Address: 45-682 Kapalai Pl.
City: Kaneohe **State:** HI **Zip:** 96744
Phone: 8083754193 **Alt:**
Email: GHAMA808@GMAIL.COM

91-226 Kauhi Street, Unit 1B
Kapolei, HI 96707
(808) 671-0808

11200 Sun CenterDrive
Rancho Cordova, CA 95670
(800) 510-0007

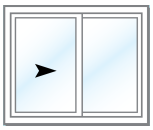
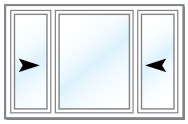
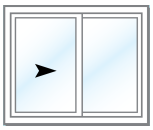
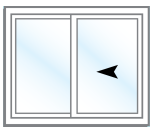
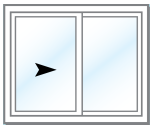
720 3rd Street
Santa Rosa, CA 965404
(707) 527-7770

4404 N Knoll Avenue
Fresno, CA 93722
(559) 275-7700

5801 State Road, Suite B
Bakersfield, CA 93308
(661) 832-3993

5858 Dryden Place, Suite 211
Carlsbad, CA 92008
(858) 240-4720

Specification

Location	Brand	Config	Picture	Frame Type	Width	Height	Frame Color	Low E^2	Glass	Grid Style	Special Instructions
LIVING ROOM	Alii	XO		RBO	72"	22"	White	Y	Etch Matte	:	
LIVING ROOM	Alii	XOX		RBO	117"	22"	White	Y	Etch Matte	:	
LIVING ROOM	Alii	XO		RBO	72"	22"	White	Y	Etch Matte	:	
LIVING ROOM	Alii	OX		RBO	72"	22"	White	Y	Etch Matte	:	
KITCHEN	Alii	XO		RBO	65"	36"	White	Y	Etch Matte	:	

Customer's Signature: _____ Date: 01/28/26

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Specification

Material to be used will closely match existing / if wood is used, it will be paint ready primed lumber - NO PAINT - Recommend customer to paint within 7 to 30 days of installation	Initials _____
All discounts available have been applied 57% off Friends and Family Discount	Initials _____
Arrival/ Installation will be approximately 28 to 32 weeks from SPEC. All debris will be removed @ time of job completion	Initials _____
20% of contracted amount for ORDER CANCELLATION fee will be assessed after final SPEC's completed	Initials _____
DOUBLE LIFETIME WARRANTY, screen frame, hardware, accidental glass breakage and any condensation in IGU.	Initials _____
WINDOW SCREENS warranty limited to 2 years starting at installation date. After 2 years customer can bring to shop FOR REPAIR @ NO CHARGE.	Initials _____
If found, DRY ROT 'n WATER DAMAGE WILL BE ADDRESSED @ time o' INSTALLATION additional charges will be assessed through a Change Order @ that time.	Initials _____
Any additional work other than stated on this contract, will be addressed separately and additional charges may apply.	Initials _____
ALL configurations are LOOKING from the OUTSIDE LEFT to RIGHT X= sash that moves O= sash that is stationary ALL CONFIGURATIONS HAVE BEEN VERIFIED BY OWNER	Initials _____
Customer is responsible to remove/replace blinds, curtains and/or shutters / these may not fit back as they were after windows installation	Initials _____
50% initial investment @ signing / balance @ time of job completion	Initials _____
50% initial investment @ spec / balance @ time of job completion	Initials _____
Sash bolts on all slider windows (XO, OX, XOX) on first floor windows as well as dead bolt on all sliding doors included @ NO CHARGE	Initials _____

Windows Hawaii ("Contractor") estimates that it will subcontract approximately____% of the work. Contractor intends to use the following subcontractors:

Contractor agrees to furnish and install the following for the price stipulated below (continued onto next line):

Estimated Start: 38-40 Weeks Estimated Completion Time Frame: 38-40 Weeks No Grid: ☐

Failure by the contractor without lawful excuse to substantially commence work within 20 days from the approximate ate specified in the contract when work will begin is a violation of the Contractors' State License Law.

Notice is hereby given that substantial commencement of work shall be defied as any of the following actions by the seller (contractor):

(Contractor is not required to expressly give notice to the Owner/Buyer of these events, unless otherwise expressly agreed in writing)

- Completion and signature of drawing plans by the owner; or
- Contractor commences removal of existing materials in preparation for installation of improvments; or
- Contractor orders/executes contracts for project material expressly identified by a purchase order to vendor that identifies this projects as basis of the purchase of such materials.

Subtotal	$18,792.00
Discount	-$10,711.44
Sales Tax	$380.76
Cash Total	$8,461.32
Down Payment	$4,919.37
Balance Due on Completion	$3,541.95

All checks must me made out to: Windows Hawaii Check #: _____

Add 3% for credit card (Non-refundable)

Caution: Do not Sign this proposal until you have read the contents of the reverse side.

Acceptance: all prices, specifications and conditions are satifactory and hereby accepted.

Authorization is given to Windows Hawaii, its employees and assignees for all rights and access to accomplish the work commissioned. Windows Hawaii is not responsible for existing structural defects, code violations, or conditions existing beyond their control

IF THE CUSTOMER MAKES A CHECK PAYABLE TO A SALESPERSON, AND THE SALESPERSON DOES NOT PAY THE CONTRACTOR, THE CUSTOMER IS STILL RESPONSIBLE

Customer's Signature: _____ Date: 01/28/26

Submitted By: _____ Date: 01/28/26

Accepted By: _____ Date: 01/28/26

Contractors are required by law to be licensed and regulated by the Contractor's State License Board which has jurisdiction to investigate complaints against contractors if a complaint regarding a patent act or omission is filed within four years of the date of the alleged violation. A complaint regarding a latent act or omission pertaining to structural defects must be filed within 10 years of the date of the alleged violations. Any quetsions concerning a contracator may be referred to DCCA PVL, P.O. Box 3469, Honolulu HI 96801

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Windows Hawaii
Customer Information Sheet

- Windows Hawaii uses various mainland manufacturers. These products are custom made for your home and once manufactured, cannot be re-used or re-sold.
- Once your contract and sales information has been received by our production department we immediately begin the ordering process, and an appointment will be set to do a final measurement by our production supervisor. At this inspection, we may advise changes if we see fit to enhance your project. If changes are needed, these will be explained to you and meet with your agreement. Once the inspection is complete your order will be finalized. Manufacturing and shipping typically takes 22 to 24 weeks. This timeline is subject to change with fluctuations in the market and COVID-19 production restrictions. Ask your project manager for a more accurate timeline. Once the products and materials have arrived from the mainland, you will be contacted and an installation date will be scheduled.
- The installers will need access to the areas of your home where the work is to be completed. Window and door installers require access on both the interior and exterior. Please accommodate them by clearing away furniture or any other items that may block access, a minimum of 3 feet from walls, windows, and/or doors. We will be happy to assist you in moving any heavy or large objects. Please advise us if you require this assistance so we can plan accordingly.
- When the installation is complete, we will provide you with the written manufacturers warranty as well as the Windows Hawaii installation warranty, and a brief survey to evaluate your job, your satisfaction with your new products, and with your installation crews. Your final payment for new products and services will be due once the installation is complete. It is customary to pay the installers once the products are installed. If an item is left incomplete due to unforseen circumstances, a reasonable amount of the final payment may be retained until it is completed, example, $500 per incomplete window/door, etc. This amount will be due once the item is completed. Please anticipate a 10-12 week turnaround (subject to COVID-19 production restrictions) for reorders or additional materials from the mainland.
- In addition, if our installers find dry rot, termite, or other damage, that could not be seen at the time of the sale, they will point this out to you and estimate the time and materials needed to repair the damage. These costs will be in addition to your contracted price. This will be estimated for you prior to the work commencing so that you can approve it in writing.

CHAPTER 672E OF THE HAWAII REVISED STATUTES CONTAINS IMPORTANT REQUIREMENTS YOU MUST FOLLOW BEFORE YOU MAY FILE A LAWSUIT OR OTHER ACTION FOR DEFECTIVE CONSTRUCTION AGAINST THE CONTRACTOR WHO DESIGNED, REPAIRED, OR CONSTRUCTED YOUR HOME OR FACILITY. NINETY DAYS BEFORE YOU FILE YOUR LAWSUIT OR OTHER ACTION, YOU MUST SERVE ON THE CONTRACTOR A WRITTEN NOTICE OF ANY CONSTRUCTION CONDITIONS YOU ALLEGE ARE DEFECTIVE. UNDER THE LAW, THE CONTRACTOR HAS THE OPPORTUNITY TO MAKE AN OFFER TO REPAIR AND/OR PAY FOR THE DEFECTS. YOU ARE NOT OBLIGATED TO ACCEPT ANY OFFER MADE BY A CONTRACTOR. THERE ARE STRICT DEADLINES AND PROCEDURES UNDER THE LAW, AND FAILURE TO FOLLOW THEM MAY NEGATIVELY AFFECT YOUR ABILITY TO FILE A LAWSUIT OR OTHER ACTION.

YOU, THE BUYER, MAY CANCEL THIS TRANSACTION AT ANY TIME PRIOR TO MIDNIGHT OF THE THIRD BUSINESS DAY AFTER THE DATE OF THIS TRANSACTION. SEE THE ATTACHED NOTICE OF CANCELLATION FORM FOR AN EXPLANATION OF THIS RIGHT

Our goal is for you to be completely satisfied with your new windows and their installation, to the point that you refer your friends and family to us. We also offer an incentive for your referrals that your sales representative can explain to you.

I understand and agree with the explanation above:

Customer's Signature: _____ Date: 01/28/26

Notice to Owner

Under the Hawaii Mechanics' Lien Law, any contractor, subcontractor, laborer, supplier, or other person or entity who helps to improve your property, but is not paid for his or her work or supplies has a right to place a lien on your home, land or property where the work was performed and to sue you in court to obtain payment.

This means that after a court hearing, your home, land, and property could be sold by a court officer and the proceeds of the sale used to satisfy what you owe. This can happen even if you have paid your contractor in full if the contractor's subcontractors, laborers, or suppliers remain unpaid.

To preserve their rights to file a claim or lien against your property, certain claimants such as subcontractors or material suppliers are each required to provide you with a document called a "Preliminary Notice." Contractors and laborers who contract with owners directly do not have to provide such notice since you are aware of their existence as an owner. A preliminary notice is not a lien against your property. Its purpose is to notify you of persons or entities that may have right to file a lien against your property if they are not paid. In order to perfect their lien rights, a contractor, subcontractor, supplier, or laborer must file a mechanics' lien with the county recorder, which then becomes a recorded lien against your property. Generally, the maximum time allowed for filing a mechanics' lien against your property is 90 days after substantial completion of your project.

TO INSURE EXTRA PROTECTION FOR YOURSELF AND YOUR PROPERTY, YOU MAY WISH TO TAKE ONE OR MORE OF THE FOLLOWING STEPS

1. Require that your contractor supply you with a payment and performance bond (not a license bond), which provides that the bonding company will either complete the project or pay damages up to the amount of the bond. This payment and performance bond as well as a copy of the construction contract should be filed with the county recorder for your further protection. The payment and performance bond will usually cost from 1 to 5 percent of the contract amount depending on the contractor's bonding ability. If a contractor cannot obtain such a bonding, it may indicate his or her financial incapacity.
2. Require that payments be made directly to subcontractors and material suppliers through a joint control. Funding services may be available, for a fee, in your area, which will establish voucher or other means of payment to your contractor. These services may also provide you with lien waivers and other forms of protection. Any joint control agreement should include the addendum approved by the registrar.
3. Issue joint checks for payment, made out to both your contractor and subcontractors or material suppliers involved in the project. The joint checks should be made payable to the persons or entities which send preliminary notices to you. Those persons or entities have indicated that they may have lien rights on your property, therefore you need to protect yourself. This will help to insure that all persons due payment are actually paid.
4. Upon making payment on any completed phase of the project, and before making any further payment, require your contractor provide you with unconditional "Waiver and Release" forms signed by each material supplier, subcontractor, and laborer involved in that portion of the work for which payment was made. Most stationery stores will sell the "Waiver and Release" forms if your contractor does not have them. The material suppliers, subcontractors, and laborers that you obtain releases from are those persons or entities who have filed preliminary notices with you. If you are not certain of the material suppliers, subcontractors, and laborers working on your project, you may obtain a list from your contractor. On projects involving improvements to a single-family residence or a duplex owned by individual, the persons signing those releases lose the rig
   To protect yourself under this option, you must be certain that all material suppliers, subcontractors, and laborers have signed the "Waiver and Release" form. If a mechanics' lien has been filed against your property, it can only be voluntarily released by a recorded "Release of Mechanics' Lien" signed by the person or entity that filed the mechanics' lien against your property unless the lawsuit to enforce the lien was not timely filed. You should not make any final payments until any and all such liens are removed. You should consult an attorney if a lien is filed against your property.
5. STATE LAW REQUIRES ANYONE WHO CONTRACTS TO DO CONSTRUCTION WORK TO BE LICENSED BY THE CONTRACTORS' STATE LICENSE BOARD IN THE LICENSE CATEGORY IN WHICH THE CONTRACTOR IS GOING TO BE WORKING - IF THE TOTAL PRICE OF THE JOB IS $500 OR MORE (INCLUDING LABOR AND MATERIALS). LICENSED CONTRACTORS ARE REGULATED BY LAWS DESIGNED TO PROTECT THE PUBLIC. IF YOU CONTRACT WITH SOMEONE WHO DOES NOT HAVE A LICENSE, THE CONTRACTORS' STATE LICENSE BOARD MAY BE UNABLE TO ASSIST YOU WITH A COMPLAINT. YOUR ONLY REMEDY AGAINST AN UNLICENSED CONTRACTOR MAY BE CIVIL COURT, AND YOU MAY BE LIABLE FOR DAMAGES ARISING OUT OF ANY INJURIES TO THE CONTRACTOR OR HIS OR HER EMPLOYEES.
   YOU MAY CONTACT THE CONTRACTORS' STATE LICENSE BOARD TO FIND OUT IF THIS CONTRACTOR HAS A VALID LICENSE. THE BOARD HAS COMPLETE INFORMATION ON THE HISTORY OF LICENSED CONTRACTORS, INCLUDING ANY POSSIBLE SUSPENSIONS, REVOCATIONS, JUDGMENTS, AND CITATIONS. THE BOARD HAS OFFICES THROUGHOUT HAWAII. PLEASE CHECK THE GOVERNMENT PAGES OF THE WHITE PAGES FOR THE OFFICE NEAREST YOU OR CALL 808-587-3295 FOR MORE INFORMATION.

Notice to Owner

6. YOU SHOULD NOT MAKE ANY ORAL AGREEMENTS. Make sure everything is put in writing, including but not limited to the price, what work is to be done, any specific exclusions or restrictions, and the grade and brand of materials to be used, the length of the project, etc. See HRS Chapter 444-25.5 and the rules of the Contractors License Board. If you later agree to make any changes in the original specifications, THESE CHANGES SHOULD BE IN WRITING AS WELL.
7. TAKE TIME TO STUDY THE AGREEMENT. Do not let a contractor or salesman hurry you into signing a contract; especially when you feel pressured by emergencies.
8. REMEMBER, a CONTRACT IS A LEGAL, BINDING DOCUMENT. Make certain you understand the contract. If not, spend a few extra dollars to have an attorney explain it to you.
9. DO NOT APPROVE PLANS OR BLUEPRINTS unless you understand them.
10. PLEASE BE SURE YOUR CHECKS ARE MADE OUT TO THE CONTRACTOR, NOT A SALESMAN.
11. Make sure and publish a "NOTICE OF COMPLETION" in the newspaper as soon as the work is done. No lien may be claimed 46 days after the notice requirement (among other things) is completed in accordance with HRS Chapter 507.
12. Discuss with your contractor the possibility of withholding a portion of payment until the 45-day period for filing liens has expired. The amount withheld should be sufficient to cover all claims which might be filed. You and your contractor must agree on the amount.

The above is not meant to be an exhaustive review of Mechanics' Liens. It is intended that you understand that you are entering into a contract which may bind your property and is intended that you understand how to act to protect your property.

All material is guaranteed to be as specified. All work is to be completed in a workmanlike manner according to standard practices. Any alteration or deviation from specifications below involving extra costs will be executed only upon written orders and will become an extra charge over and above the estimate. All agreements are contingent upon strikes, accidents or delays that are beyond our control.

No cancellation will be accepted except as herein provided in case of breach by the buyer. Buyer agrees to pay seller reasonable attorney fees and court costs incurred in enforcing this agreement whether or not suit is brought. In the event buyer does not pay seller on delivery and installation, buyer agrees to pay seller, in addition to attorney fees and costs, a service charge based on the highest lawful rate. Seller may assign any and all rights under this contract. Any changed material, including but not limited to, colors and sizes are to be considered an extra to be paid for by the buyer at seller's cost.

Seller shall not be liable nor responsible for damages or delays in delivery or installation due to strikes, fires, acts of God, riots, civil commotion, defects in the premises where the work is to be done, or other matters beyond the seller's control.

The installation provided for hereunder is to be in conformance with the applicable local building codes and ordinances and in the event that the applicable local building codes are ordinances and in contact with the contract, then the applicable local building codes and ordinances shall prevail and the parties hereto agree to be bound thereby

Inasmuch as damages in the event of a breach of the buyer of this agreement are difficult to ascertain and often entail specially ordered materials, it is understood and agreed that if buyer shall fail to accept delivery and/or installation of merchandise, buyer shall at seller's option pay to seller 50% of the sales price as liquidated damages. However, nothing herein is to be construed to prevent the seller from recovering full cash sale price for items delivered or installed.

_____ Date: 01/28/26	_____ Date: 01/28/26
Contractor	Owner
_____ Date: 01/28/26	_____ Date: 01/28/26
Witness	Owner